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DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 91

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO TITLE IX.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 41, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4150. Title IX requirements.

(a) Any school that receives federal funding and is subject to the requirements of Title IX shall ensure that students, staff, and faculty are protected from sex-based discrimination, including sex-based harassment.

(b) Any school that receives federal funding and is subject to the requirements of Title IX shall prominently post on their school webpage a section regarding the school's responsibilities to Title IX. The webpage must contain all of the following:

(1) A brief description of the roles and duties of Title IX administrators:

a. The roles and duties of a Title IX coordinator.

b. The roles and duties of a Title IX investigator.

c. The roles and duties of a Title IX decision-maker.

(2) The name, email address, office address, and phone number of the Title IX coordinator for the school.

(3) A link to the school's policy manual related to Title IX.

(4) The right of a student, staff, and faculty to file a complaint to start an investigation into a report of sex-based discrimination, including sex-based harassment.

(5) A link to the appropriate form to make a complaint.

(6) A link to the most recent version of the frequently asked questions webpage regarding Title IX from the U.S. Department of Education's Office for Civil Rights.

(7) The right of a student, staff, and faculty who reports sex-based discrimination, including sex-based harassment, to receive supportive measures, regardless of whether there is an investigation.

22 (8) Provide an explanation of and list of examples of supportive measures that may be available to assist
23 students, staff, and faculty who report sex-based harassment.

24 (c) At the beginning of the academic school year, every Title IX coordinator shall provide a written reminder to all
25 school staff and faculty regarding the school's policy for reporting sex-based discrimination, including sex-based
26 harassment, and how to make a report pertaining to sex-based discrimination or sex-based harassment.

27 (d) Nothing in this section should be construed to require a school to establish an online website if the school does
28 not already maintain one.

SYNOPSIS

This Act requires schools that receive federal funding ensure students, staff, and faculty are protected from sex-based discrimination and sex-based harassment. The Act further requires schools to communicate to students, through their website, the existence of Title IX administrators as required by federal law. The Act requires the school's website provide information explaining the roles and duties of Title IX administrators, how to contact the appropriate Title IX administrator, and the school's Title IX policy. The Act ensures that students have access to the appropriate forms to start a complaint and access to the FAQ link provided by U.S. Office of Civil Rights. The Act instructs the school to provide an explanation and examples of possible supportive measures for students who experience sex-based discrimination or sex-based harassment.

The Act instructs the Title IX coordinator of every Title IX school to provide a written reminder to school staff and faculty at the beginning of the academic year, outlining the school's Title IX policy regarding the reporting of sex-based discrimination, including sex-based harassment.

Author: Senator Sturgeon